

Based on the foregoing, the motion is not supported by sufficient diligent efforts to obtain Code of Civil Procedure section 473(b) relief. The motion is accordingly denied.

9. S-CV-0056043 Hill Top Center v. Kelly Architectural & Planning

Plaintiff's Motion to Compel Responses to Discovery without Objections and for Monetary Sanctions

Plaintiff Hill Top Center, LLC's objections to defense counsel, Dennis Wilson's declaration are overruled.

Plaintiff Hill Top Center, LLC's unopposed motion to compel responses to discovery without objections, is granted. Defendant Kelly Architecture & Planning, Inc. shall serve verified responses, without objections, to plaintiff's demand for inspection of documents, within 10 days. Plaintiff's request for monetary sanctions against defendant Kelly Architecture & Planning, Inc., is granted in the amount of \$1,200.

Plaintiff's Motion for Leave to File First Amended Complaint

Plaintiff Hill Top Center, LLC's unopposed motion for leave to file first amended complaint is granted. Plaintiff Hill Top Center, LLC shall file and serve the first amended complaint by **September 28, 2026**.

**10. S-CV-0056103 Gilchrist, Debra v. Ruth, Charity
R-SC-0028791 Gilchrist, Debra v. Ruth, Charity
R-SC-0028916 Gilchrist, Debra v. Ruth, Charity**

Motion to Consolidate

Defendants move to consolidate three separate actions. Plaintiff opposes the motion. The court notes plaintiff filed a response to the reply without leave of court, and the court declines to consider it.

The court may order consolidation of actions involving a common question of law or fact. (Code Civ. Proc. § 1048 (a).) Consolidation for all purposes is appropriate when the parties between the actions are identical. (*Sanchez v. Super. Court* (1988) 203 Cal.App.3d 1391.) Consolidation does not alter the parties' rights; rather, its purpose is merely to promote trial convenience and economy by avoiding duplication of procedure, particularly in the proof of issues common to both actions. (*Est. of Baker* (1982) 131 Cal.App.3d 471, 485.) Relevant factors for consolidation, therefore, include: the predominance of common legal or factual issues; overlap in evidence and witnesses; the convenience of parties and attorneys; the relative advancement of the actions; and judicial efficiency. (*Todd-Stenberg v. Dalkon Shield Claimants Tr.* (1996) 48 Cal.App.4th 976, 979-80; *Est. of Baker*, 131 Cal.App.3d at 485.)